

24VECV05405 24VECV05405

County: los-angeles

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Case Number: 24VECV05405 Hearing Date: July 27, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Guillermina

Paz,

Plaintiff,

v.

American Honda Motor Co., Inc.

Defendants.

Case Number Department

25VECV05405 107

COURT'S [TENTATIVE]
ORDER RE:

Motion to Compel

Non-Party's Deposition

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1)

Grant Motion and compel non-party Catalina Paz's deposition; (2) Deny Defendant's and Plaintiff's requests for sanctions.

I.

BACKGROUND

On

September 30, 2023, Plaintiff Guillermina Paz ("Plaintiff") purchased a 2024 Acura Integra (the "Vehicle"). (Complaint ¶ 8.) The Vehicle was defective. (Complaint ¶ 10.)

On

October 31, 2024, Plaintiff filed a complaint against Defendants American Honda Motor Co., Inc. ("Defendant") and Does 1 through 10, alleging causes of action for: (1) violation of Song-Beverly Act - breach of express warranty; (2) violation of Song-Beverly Act - breach of implied warranty; and (3) violation of the Song-Beverly Act section 1793.2.

On

April 1, 2026, Defendant filed a motion to compel non-party Catalina Paz's deposition (the "Motion"). On May 26, 2026, Plaintiff filed an opposition. On July 20, 2026, Defendant filed a reply.

II.

MEET

AND CONFER AND TIMELINESS

Defendant's

notice of motion cites Code of Civil Procedure sections 1987.1, subdivision (a) and 2025.480, subdivision (b). (Notice of Motion p. 1.)

Motions

under section 2025.480 must "be made no later than 60 days after the completion of the record of the deposition" and must "be accompanied by a meet and confer declaration under section 2016.040." (Code Civ. Proc., § 2025.480, subd. (b).) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by

videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

Defendant’s

counsel’s declaration states Defendant served non-party Catalina Paz (“Paz”) with a deposition subpoena on March 10, 2026. (Sadanaga Declaration ¶ 4.) On March 27, 2026, Defendant took the non-appearance on behalf of Paz. (Sadanaga Declaration ¶ 7.) Defendant filed the Motion less than 60-days later, on April 1, 2026. Thus, the Motion is timely.

In

opposition, Plaintiff argues Defendant failed to properly meet and confer. (Opposition p. 3.)

Defendant

repeatedly emailed Plaintiff’s counsel but Plaintiff’s counsel did not respond. (Sadanaga Declaration ¶¶ 3, 6.) Meet and confer efforts by email are insufficient under Code of Civil Procedure section 2016.040. Further, a single email stating Defendant received untimely objections and stating Defendant would be taking the non-appearance is insufficient to show good faith meet and confer efforts. (Sadanaga Declaration Ex. E pdf p. 110.) Thus, Defendant failed to sufficiently meet and confer before filing the Motion.

“[N]ot

every finding that additional informal resolution efforts are required can be categorized as a failure so egregious as to justify summary denial of discovery. Such categorical rulings should be reserved for cases of clear intent to burden or harass, cases of clear flaunting of statutory responsibilities, cases of established track records of lack of good faith, and the like.” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1296.)

Defendant

submits evidence with the Motion showing Plaintiff’s counsel repeatedly ignored Defendant’s counsel’s emails. (Sadanaga Declaration ¶¶ 3, 6.) The record here shows no clear intent to burden or harass, flaunting of statutory responsibilities, or lack of good faith. The court will consider the Motion’s merits.

III.

LEGAL

STANDARD

“The

attendance and testimony of any other deponent, as well as the production by the deponent of any document, electronically stored information, or tangible thing for inspection and copying, requires the service on the deponent of a deposition subpoena under Chapter 6 (commencing with Section 2020.010).” (Code Civ. Proc., § 2025.280, subd. (b).)

“If

a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subd. (a).)

“If

a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” (Code Civ. Proc., § 2025.480, subd. (a).)

IV.

DISCUSSION

Defendant

requests the court order Paz's deposition and production of documents. (Notice of Motion pp. 1-2.)

In

opposition, Plaintiff states Paz is willing and available to appear for deposition, and the delay is attributable to Paz being out of the country. (Opposition pp. 2-3.) Plaintiff requests the court deny the Motion because it

is unnecessary. (Opposition p. 5.)

In

reply, Defendant argues Plaintiff did not propose a deposition date until after Defendant filed the Motion. (Reply p. 2.) Defendant states the parties have confirmed a date for the deposition, but requests the court issue an order compelling Paz's appearance to ensure the deposition is completed. (Reply p. 2.)

Nothing

before the court indicates the parties completed Paz's deposition. Thus, the Motion is not moot.

The

parties do not appear to dispute that Paz's deposition should be taken. In contrast, the dispute here appears to concern scheduling the date to complete the deposition. Thus, the court will order the parties to complete Paz's deposition.

Defendant's

notice of motion also indicates Defendant is also moving to compel Paz to produce documents. (Notice of Motion pp. 1-2.) Motions to compel further responses to demands for inspection of documents or tangible things must be accompanied by a separate statement. (Cal. Rules of Court, rule 3.1345(a)(3).) Defendant filed no separate statement. As such, the request to compel Paz to produce documents is denied.

V.

SANCTIONS

Defendant

moves for sanctions against Plaintiff and/or Plaintiff's counsel under Code of Civil Procedure sections 2023.030 and 2025.450, subdivision (g)(1). (Memorandum pp. 6-7.)

Code

of Civil Procedure section 2025.450 applies when "a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230" fails to appear for deposition. As a non-party, section 2025.450 does not apply to Paz. As such, the court denies Defendant's request for sanctions under

section 2025.450.

“A

court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision.” (City of Los Angeles v. PricewaterhouseCoopers, LLP (2024) 17 Cal.5th 46, 74.)

Plaintiff’s

counsel did not respond to Defendant’s counsel’s inquiries about scheduling Paz’s deposition. (Sadanaga Declaration ¶¶ 3, 6.) The court finds this is not an unusual form of discovery abuse or pattern of abuse that warrants sanctioning Plaintiff or Plaintiff’s counsel.

In

opposition, Plaintiff requests the court sanction Defendant and Defendant’s counsel because Defendants’ counsel’s meet and confer efforts were insufficient and Defendant’s counsel filed the Motion rather than resolve the matter informally. (Opposition p. 4.)

Defendant’s

counsel repeatedly requested dates from Plaintiff’s counsel to schedule Paz’s deposition. (Sadanaga Declaration ¶¶ 3, 6, 9.) Plaintiff’s counsel appears to have first informed Defendant’s counsel Paz was out of the country on May 22, 2026. (Gopstein Declaration ¶ 6.) May 22, 2026, was just a few days before Plaintiff filed the opposition and more than a month after Defendant filed the Motion. Defendant’s counsel’s conduct here does not warrant imposing sanctions against Defendant and Defendant’s counsel. Plaintiff’s request for monetary sanctions against Defendant and Defendant’s counsel is denied.

VI.

CONCLUSION

For

the foregoing reasons, the request to compel non-party Paz’s deposition is granted. Catalina Paz is ordered to appear for deposition within fifteen (15) days of this order. Defendant’s and Plaintiff’s requests for sanctions are denied.

Dated: July 27, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court